

25VECV03362 25VECV03362

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-11

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Case Number: 25VECV03362 Hearing Date: August 11, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

HAKOP JACK KHASHMANYAN, an individual,

Plaintiff,

vs.

ANTONIO PINHEIRO, an individual; and DOE #1,

Defendants.

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CASE NO: 25VECV03362

[TENTATIVE] RULING RE: PLAINTIFF'S MOTION TO STRIKE

Dept. U

8:30 a.m.

August 11, 2026

BACKGROUND

This case arises from an automobile accident that took place on October 16, 2023.

On June 18, 2025, Plaintiff Hakop Jack Khashmanyan filed his original complaint against Defendant Antonio Pinheiro, alleging: (1) motor vehicle negligence; and (2) intentional tort. Plaintiff is self-represented.¹

On November 14, 2025, Plaintiff filed his first amended complaint (the "FAC") against Defendant, alleging: (1) motor vehicle negligence; and (2) intentional tort.

On April 7, 2026, the Court sustained, with leave to amend, Defendant's demurrer to the FAC and granted, with leave to amend, Defendant's motion to strike portions of the FAC related to seeking punitive damages.

On April 13, 2026, Plaintiff filed his second amended complaint (the "SAC"), alleging: (1) motor vehicle negligence; and (2) general negligence.

On July 15, 2026, Plaintiff filed a motion to strike based on his position that Defendant failed to exchange information after the accident in violation of Vehicle Code section 16025.

On July 16, 2026, Plaintiff filed several additional motions (a "motion re: objection," a motion to compel further, a motion for sanctions, and a motion for terminating sanctions), all addressing his position that Defendant failed to exchange information after the accident in violation of Vehicle Code section 16025.

As of 4:00 P.M. on August 5, 2026, nothing further had been filed in this matter by any party.

RULING

The motion is denied.

LEGAL STANDARD

The Court has broad authority to strike any portion of a pleading drawn not in conformity with the law and its orders. Code Civ. Proc., § 436.

DISCUSSION

Plaintiff filed a motion to strike. Though the motion does not specify what Plaintiff is seeking to strike, the Court presumes Plaintiff is asking the Court to strike Defendant's answer.

Plaintiff's motion is based on his position that Defendant failed to exchange information after the accident in violation of Vehicle Code section 16025. Even if Plaintiff were able to establish as a matter of fact or law that Defendant violated Vehicle Code section 16025, that section merely imposes a \$250.00 penalty when someone involved in a car accident is unable to produce necessary information after a crash. That section does not provide that a litigant may obtain an order striking his opponent's pleading based on the opponent's failure to exchange necessary information. Further, enforcement of that section is a police matter, not an issue for a civil personal injury action.

Plaintiff's motion also cites Vehicle Code section 20001, which imposes criminal penalties on persons who do not stop at the scene of an accident resulting in personal injury or death. Again, even if Plaintiff had already established as a matter of fact or law that Defendant violated this section (he has not), that section does not provide that a litigant may obtain an order striking his opponent's pleading based on the opponent's violation of that section.

The motion is denied.

CONCLUSION

Plaintiff Hakop Jack Khashmanyanyan's motion to strike is DENIED.

The Clerk is ORDERED to give notice.

DATED: August 11, 2026

Lee S. Arian

Judge of the Superior Court